SOLICITATION, OFFER, AND AWARD

1. This Contract is a Rated Order under the Defense Priorities and Allocations System (DPAS) - Code of Federal Regulations - at 15 CFR 700.

RATING: DO

PAGE 1 OF PAGES 18

2. CONTRACT NUMBER	3. SOLICITATION NUMBER	4. TYPE OF SOLICITATION	5. DATE ISSUED	6. REQUISITION/PURCHASE NUMBER
	N6660426Q0147	☐ SEALED BID (IFB) INVITATION FOR BID ☒ NEGOTIATED (RFP) REQUEST FOR PROPOSAL	1/12/2026	N/A

7. ISSUED BY CODE N66604

NAVAL UNDERSEA WARFARE CENTER
Michael Ouellette, Code 0223, Contracts Department

8. ADDRESS OFFER TO *(If other than item 7)*

Contracts Department
1176 Howell Street, B1258
Newport RI, 02841-1708

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".

SOLICITATION

9. Sealed offers in original and 1 copies for furnishings the supplies or services in the Schedule will be received at the place specified in item 8, or if hand carried, in the depository located in Please See Section A. until 2:00 PM *(Hour)* local time 1/30/2026 *(Date)*

CAUTION - LATE Submissions, Modifications, and Withdrawals: See Section L, Provision Number 52.214-7 or 52.215-1. All offers are subject to all terms and conditions contained in this solicitation.

10. FOR INFORMATION CALL:	A. NAME	B. TELEPHONE *(NO COLLECT CALLS)* AREA CODE	NUMBER	EXTENSION	C. EMAIL ADDRESS
	Michael N Ouellette	401	8325568		michael.n.ouellette.civ@us.navy.

11. TABLE OF CONTENTS

OFFER *(Must be fully completed by offeror)*

NOTE: Item 12 does not apply if the solicitation includes the provisions at 52.214-16, Minimum Bid Acceptance Period.

12. In compliance with the above, the undersigned agrees, if this offer is accepted within 60 calendar days *(60 calendar days unless a different period is inserted by the offeror)* from the date for receipt of offers specified above, to furnish any or all items upon which prices are offered at the set opposite each item, delivered at the designated point(s), within the time specified in the schedule.

13. DISCOUNT FOR PROMPT PAYMENT *(See Section I, Clause Number 52.232-8)*	10 CALENDAR DAYS (%)	20 CALENDAR DAYS (%)	30 CALENDAR DAYS (%)	CALENDAR DAYS (%)

14. ACKNOWLEDGMENT OF AMENDMENTS *(The offeror acknowledges receipt of amendments to the SOLICITATION for offerors and related documents numbered and dated)*:	AMENDMENT NUMBER	DATE	AMENDMENT NUMBER	DATE

15A. NAME AND ADDRESS OF OFFEROR — CODE — FACILITY

16. NAME AND THE TITLE OF PERSON AUTHORIZED TO SIGN OFFER *(Type or print)*

15B. TELEPHONE NUMBER AREA CODE	NUMBER	EXTENSION

☐ 15C. CHECK IF REMITTANCE ADDRESS IS DIFFERENT FROM ABOVE - ENTER SUCH ADDRESS IN SCHEDULE.

17. SIGNATURE

18. OFFER DATE

AWARD *(To be completed by Government)*

19. ACCEPTED AS TO ITEMS NUMBERED

20. AMOUNT

21. ACCOUNTING AND APPROPRIATION

22. AUTHORITY FOR USING OTHER THAN FULL OPEN COMPETITION UNDER THE UNITED STATES CODE AT:
☐ 10 U.S.C. 3204(a) ☐ 41 U.S.C. 3304(a) ( )

23. SUBMIT INVOICES TO ADDRESS SHOWN IN *(4 copies unless otherwise specified)* ITEM

24. ADMINISTERED BY *(If other than Item 7)*

25. PAYMENT WILL BE MADE BY CODE

26. NAME OF CONTRACTING OFFICER *(Type or print)*

27. UNITED STATES OF AMERICA

(Signature of Contracting Officer)

28. AWARD DATE

IMPORTANT - Award will be made on this Form, or on Standard Form 26, or by other authorized official written notice.

Section A - Solicitation/Contract Form

GENERAL INFORMATION

DISTRIBUTION: TBD

NUWCDIVNPT PID Number: N66604-26-SIMACQ-NPT-10-0106

NUWCDIVNPT POC: Michael Ouellette; Email: Michael.n.ouellette.civ@us.navy.mil

The purpose of this agreement is to provide snack vending services to the Naval Undersea Warfare Center Division, Newport (NUWCDIVNPT) for the benefit of all NUWCDIVNPT employees.

If you have any questions regarding this solicitation email the Contracting Officer Michael Ouellette at Michael.n.ouellette.civ@us.navy.mil

Proposals due prior to 2:00 PM EST on 30 January 2026.

The following Items must be completed and submitted with your proposal:

-Page 1, Blocks 15A, 15B, 16, 17, 18
-Section B
-Statement of work Section 4.0
-Section K
-Section L

Section B - Supplies or Services and Prices

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0001	CMWR Snack Vending Services FFP Services in Accordance with the Statement of Work FOB: Destination VENDOR PART NR: 300000046758-0010 PURCHASE REQUEST NUMBER: 1300977252 PSC CD: R499	1	Years		%
				NET AMT	

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0002 OPTION	OPTION YEAR 1 Snack Vending FFP Services in Accordance with the Statement of Work FOB: Destination				%
				NET AMT	

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0003 OPTION	OPTION YEAR 2 Snack Vending FFP Services in Accordance with the Statement of Work FOB: Destination				
					%
				NET AMT	

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0004 OPTION	OPTION YEAR 3 Snack Vending FFP Services in Accordance with the Statement of Work FOB: Destination				
					%
				NET AMT	

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0005 OPTION	OPTION YEAR 4 Snack Vending FFP Services in Accordance with the Statement of Work FOB: Destination				%
				NET AMT	

CLAUSES INCORPORATED BY FULL TEXT

52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor prior to option period start provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 10 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed Five (5) years.

(End of clause)

Section C - Descriptions and Specifications

STATEMENT OF WORK

NUWCDIVNPT CMWR SNACK VENDING MACHINES

STATEMENT OF WORK

1.0 BACKGROUND

The Naval Undersea Warfare Center Division, Newport (NUWCDIVNPT) is the Navy's full-spectrum research, development, test and evaluation, engineering, and fleet support center for submarine warfare systems and many other systems associated with the undersea battle space. NUWCDIVNPT annually has over eight thousand employees, contractors and visitors accessing our site and the NUWCDIVNPT Command Moral Welfare and Recreation (CMWR) require a Snack Vending Machines services for the benefit of all at NUWCDIVNPT.

NUWCDIVNPT has a requirement for continuously stocked and operational snack vending machines within its buildings located on NUWCDIVNPT campus and Naval Station Newport (NAVSTA) in Newport, Rhode Island. The purpose of this contract is to support the NUWCDIVNPT Civilian Morale Welfare and Recreation (CMWR) Program and provide vending machines stocked with a variety of snacks for the benefit of all NUWCDIVNPT.

1.1 PLACE OF PERFORMANCE

Work/services will be performed at NUWCDIVNPT premises.

1.2 AUTHORIZED USERS

NUWCDIVNPT

2.0 SCOPE

SUPPLIES/SERVICES AND PRICES

The contractor shall provide, maintain and stock smart snack vending machines to all (26) buildings situated on the NUWCDIVNPT and premises.

3.0 APPLICABLE DOCUMENTS (AD)

	Name:	**Dated:**
1	NUWCDIVNPT SECURITY MANUAL (SECMAN)	6/16/2023
2	NUWC Building MAP	7/24/2024
3		

4.0 TECHNICAL REQUIREMENTS

The contractor shall provide 25-45 smart snack vending machines located in twenty-six (26) buildings situated on the NUWCDIVNPT premises. Currently there are 27 snack vending machines located at NUWCDIVNPT. These 27 machines are located in twenty-six (26) buildings situated on the NUWCDIVNPT premises.

The contractor agrees to remit to the NUWCDIVNPT's Civilian Morale Welfare and Recreation Food Services Board (CMWR/FSB) a flat fixed sum of: [% TO BE FILLED IN UPON AWARD] percent of gross sales per month in exchange for providing snack vending machines to NUWCDIVNPT.

For purposes of this contract “smart vending machine" refers to machines that dispense snack products only: pretzels, potato chips, crackers, cookies, candy, etc. No liquid products, soda, juice, water, etc.

So long as the required number of machines, as determined by the Government, remains within the 25-45 (inclusive) range the amount the contractor is required to remit to the Government per month shall remain unchanged. If the need for the machines, as determined by the Government, either increases to more than 45 machines or decreases to less than 25 machines, such a change will be considered beyond the scope of this contract. A requirement of more than 45 machines or less than 25 machines will be solicited as a new requirement.

Payments are to be made on a quarterly basis. Payments shall be directly deposited by the contractor into the CMWR/FSB’s bank account (details to be provided upon award). Deposits shall be made no later than thirty (30) calendar days following the third (3rd) month of the preceding quarter, and every three (3) months thereafter. A separate letter or email shall be sent to the CMWR/FSB indicating the date and amount of the deposit. Failure to make a payment will constitute a material breach and may be grounds for immediate contract termination.

The terms of this contract can only be modified with the mutual consent of both the contractor and the Contracting Officer. Administrative changes will be executed by a unilateral contract modification.

4.1 Specification

4.1.1 The contractor shall furnish and install, at its own expense, a minimum of twenty- five (25) industry standard snack food vending machines total: twenty-four (24) machines located on the NUWCDIVNPT campus, with an additional one (1) machine located on or near the NAVSTA base. The contractor shall supply more machines if new opportunities arise (i.e., new building opening), and the contractor may supply more machines in other locations if commercially viable.

4.1.2

Pricing Regulations

Condition	Price
55% or more of items in each machine	$1.25 or less
Maximum price for all products	$1.50
Candy	Competitively priced, not to exceed $1.50
Pastry and large bags of chips	Not to exceed $1.25
Annual price increase	$0.05 at vendor's discretion

Maximum price during contract period	$1.50

Product Regulations

- Not less than 25% of the vending products in each machine shall be nationally recognized chocolate products.
- This 25% requirement for chocolate products must be maintained throughout the entire year, including warmer months.

4.1.3 The contractor shall provide smart vending machines that accept credit card and dollar bill validators.

4.1.4 Approval from the NUWCDIVNPT Food Service Board (FSB) is required for the addition of any machines over the said total of twenty-five (25). NUWCDIVNPT's FSB shall have the right to require the contractor to relocate any of the vending machines to a different area or building. If relocation is required, it is the contractor's responsibility to relocate the machines at its own expense within fifteen (15) calendar days of formal notification. In addition, NUWCDIVNPT's FSB shall have the right to determine at any time during the period of this contract that any of the vending machines are a surplus to its requirement, whereupon said vending machines shall be removed by the contractor at its own expense within ten (10) business days of formal notification by the Contracting Officer. NUWCDIVNPT's FSB may remove and store any such vending machines not removed by the contractor within the stated time frame, and charge the contractor for expenses incurred for such removal and storage.

4.1.5 The contractor shall, at its own expense, obtain all permits, give all necessary notices, pay all license fees, and comply with all municipal, district, state, and federal laws, rules, ordinances and regulations, and any publications published by the Department of Defense relating to public health or applicable to the business carried out under this contract. The contractor, at its own expense, shall assume complete and sole liability for all federal, state, and local taxes applicable to the property, income, and transactions of this contract. The contractor, at its own expense, is responsible for all trade fixtures, tools of the trade, equipment, and any other such items or supplies required for performance of this contract. None of the responsibilities or expenses will in any way reduce the total gross sales amount to be remitted to the Government.

4.1.6 The contractor shall provide smart vending machines that are equipped so as to provide thermal overload protection. In addition, the contractor shall at its own expense, ensure that all drink machines are firmly anchored or secured to the floor or wall at the lime or installation. An industry standard stabilizing bracket shall be used to prevent vending machine tip overs due to misuse, abuse or acts or God. A safety decal shall be prominently displayed near the coin slot warning of hazards of tipping or rocking the machine and assuring that the machine is secured. The contractor shall ensure, at its own expense, that all machines meet all Federal, state, local, Navy and DOD fire and safety guidelines.

4.1.7 In the event it becomes necessary to change the vending price during the contract period, the contractor shall make the necessary changes to the vending prices in the machines within five (5) business days of the request by the Contracting Officer. All costs resulting from any vending price change shall be borne by the contractor. The Contracting Officer shall have the right to negotiate the vending price when it deems necessary. The contractor shall advise the Contracting Officer in writing within ten (10) business days before the contract period expires of contractor's intent to exercise an annual price increase. Any price adjustments made to the vending prices by the Contracting Officer may require re-negotiation of the Gross Sales percentage agreed to in the contract.

4.1.8 One hundred percent (100%) of the vending machines shall utilize LED lights, or if not equipped with LED lighting, the machine bulbs shall be turned off to conserve energy.

4.1.9 The contractor, at no additional cost, shall supply Braille vending information on machines on an as needed basis.

4.2 Deliveries or performance

4.2.1 The contractor shall furnish a sufficient number of trained employees for the efficient performance of this contract. The vendor personnel shall meet security standards in accordance with AD 3.1 and all applicable regulations, and shall obtain installation access, passes and permits and security clearances as applicable.

4.2.2 The contractor shall not employ any person for work on this contract if such employee is identified to the Contractor by the Contracting Officer as a potential threat to the health, safety, security, general wellbeing or operational mission of the Government installation and its population. The contractor shall remove from the performance of this contract at the request of the Contracting Officer, any agent or employee of the contractor if, in the opinion of the Contracting Officer or their authorized representative, the conduct of such person, while on or about the premises covered by this contract, in any way interferes with the proper order and discipline of the applicable military installations. This identification will not excuse the Contractor from performing the requirements.

4.3 Maintenance of machines

4.3.1 The contractor shall at all times, at its own expense, maintain the vending machines, including all meters and special attachment, in proper mechanical working order and make all necessary repairs and replacement of parts. The contractor shall also keep the vending machines in a clean, attractive and sanitary condition to the satisfaction of the NUWCDIVNPT's FSB and the cognizant medical officer. Replacement of any damaged parts and/or machines shall be performed within five (5) working days of notification. In addition, the contractor shall perform monthly preventative maintenance on the equipment in order to keep the machines in good working order. All service calls shall be responded to within twenty-four (24) hours of notification. Upon award, the contractor shall provide a point of contact and a toll free service call number.

4.4 Collection of sales receipts

4.1.1 The contractor shall be responsible for the collection of all sales receipts including dollar bills from their vending machines. If requested, the contractor shall provide a monthly report identifying the month's deliveries and collections for each machine.

4.5. Refunds

4.5.1 The contractor shall be responsible for reimbursing customers all money lost through the malfunctioning of machines. The procedure for tracking and distribution of refunds shall be as follows: Near the coin slot on each machine shall be proximately displayed a sticker/notice that all service/refund calls shall be directed to the NUWCDIVNPT TPOC; identifying an email address provided by the Government. The NUWCDIVNPT TPOC will relay all service calls to the contractor. A call for reimbursement of lost money will be logged by the NUWCOIVNPT TPOC, noting the following: Date. Building Number, Machine Number/Location and amount of loss. The NUWCDIVNPT TPOC will make arrangement to refund the loss to the customer. The NUWCDIVNPT TPOC will provide the contractor, on a quarterly basis, a copy of the log sheet with the above collected data with the total amount of claims paid during the reporting period and the amount of money remaining in the "cash float" described in section b. below. No other information, other than the information on the loss/refund log sheet shall be required to support the claims

4.5.2 The contractor, within 30 days of contract award shall provide a NUWCDIVNPT TPOC with a $20.00 cash float for reimbursements for money lost to customers in the contractor's vending machines. Whenever the cash float drops below $10.00 the NUWCDIVNPT TPOC will notify the contractor. Within 30 days of receipt of such notification, the contractor shall replenish the float so that it equals $20.00. Within 30 days after completion of the contract, when the contractor's last machine is removed from the NUWCDIVNPT premises, all remaining cash float money will be returned to the contractor. A copy of the logging report detailed in section a. above shall be the only accounting the Government will be required to provide to the contractor for the balance of the cash float. Such accounting will be provided by the Government at least annually and at any time a request is made by the NUWCDIVNPT TPOC to the contractor to replenish the float back to the $20.00 level.

4.6 Period of performance and contract expiration

4.6.1 The contractor shall have all machines installed and operational no later than 45 days after contract award and continue for a period of 12 months unless sooner terminated as provided herein. The contractor shall notify the COR and Contracting officer when the actual installation is complete and the period of performance shall commence on that date. Four one-year options may be exercised in accordance with Clause 52.217-9.

4.6.2 Upon expiration of this contract or upon termination as provided herein, the contractor's property shall be promptly removed from the NUWCDIVNPT premises. Upon failure to do so, the NUWCDIVNPT FSB may cause property to be removed at the contractor's expense.

4.6.3 Any monies due and payable to the NUWCDIVNPT FSB from the contractor as a result of this contract remain due and payable.

4.6.4 Upon termination or expiration of this contract, the contractor shall promptly settle its account with the NUWCDIVNPT CMWR/FSB, including payment in full of all amounts due, clean and leave the premises in as good order and condition as when received (damage due to acts of God or the US Government, and ordinary wear and tear excepted), and surrender base passes, decals.

4.7 Stocking of the machines

4.7.1 The contractor shall at all times keep the machines stocked with a variety of products. The contractor shall keep all machines adequately stocked so that an individual product line within a machine sells out no more than once a month. All service calls regarding empty machines or an empty product line(s) shall be responded to and corrective action taken within two (2) business days of notification. Upon award, the contractor shall provide a point of contact and a toll free number.

4.8 Safety requirements

The contractor shall ensure, at its own expense, that all machines meet all Federal, state, local Navy, and DOD fire and safety guidelines.

4.9 Product freshness

The contractor, at his own expense, shall monitor vending machines temperatures, and product expiration dates of items in vending machines to ensure product freshness and to prevent expired product from reaching the patrons. Expired product will be immediately removed from vending machines, however preference is that product is removed prior to expiration.

CLAUSES INCORPORATED BY FULL TEXT

C-228-H002 MINIMUM INSURANCE REQUIREMENTS (NAVSEA) (JAN 2019)

(a) In accordance with the clause(s) of this contract entitled "Insurance--Work On a Government Installation" (FAR 52.228-5) and “Liability and Insurance” (DFARS 252.217-7012), as applicable, the Contractor shall procure and maintain insurance, of at least the kinds and minimum amounts set forth below:

(i) Workers' compensation and employer’s liability coverage shall be at least $100,000, except as provided in FAR 28.307-2(a), if applicable

(ii) Bodily injury liability insurance coverage shall be written on the comprehensive form of policy of at least $500,000 per occurrence.

(iii) Automobile liability policies covering automobiles operated in the United States shall provide coverage of at least $200,000 per person and $500,000 per occurrence for bodily injury and $20,000 per occurrence for property damage. The amount of liability coverage on other policies shall be commensurate with any legal requirements of the locality and sufficient to meet normal and customary claims.

(b) To be approved by the Contracting Officer, insurance certificates must include the following cancellation policy statement: Prior to cancellation or material change in coverage, the contractor shall give 30 days written notice to the Contracting Officer.

(c) Physical work cannot begin until the insurance certificate has been approved by the Contracting Officer. Failure to provide an acceptable insurance certificate will not remove the contractor's responsibility to meet the delivery requirements outlined in Section F and FAR 52.211-11, Liquidated Damages – Supplies, Services, or Research and Development, if applicable.

(End of text)

Section E - Inspection and Acceptance

INSPECTION AND ACCEPTANCE TERMS

Supplies/services will be inspected/accepted at:

CLIN	INSPECT AT	INSPECT BY	ACCEPT AT	ACCEPT BY
0001	N/A	N/A	N/A	Government
0002	Destination	Government	Destination	Government
0003	Destination	Government	Destination	Government
0004	Destination	Government	Destination	Government
0005	Destination	Government	Destination	Government

Section F - Deliveries or Performance

DELIVERY INFORMATION

CLIN	DELIVERY DATE	QUANTITY	SHIP TO ADDRESS	DODAAC / CAGE

0001	POP Date of Award TO 1 Year from Award	N/A	NAVAL STATION NWPT, RECEIVING OFFICER RECEIVING OFFICER 47 CHANDLER STREET NEWPORT RI 02841 401-841-3827 FOB: Destination	N66604
0002	POP 1 Year Option Based on Award date	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	N66604
0003	POP 1 Year Option Based on Award date	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	N66604
0004	POP 1 Year Option Based on Award date	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	N66604
0005	POP 1 Year Option Based on Award date	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	N66604

Section G - Contract Administration Data

CLAUSES INCORPORATED BY FULL TEXT

G-242-H001 GOVERNMENT CONTRACT ADMINISTRATION POINTS-OF-CONTACT AND RESPONSIBILITIES (NAVSEA) (OCT 2018)

(a) The Government reserves the right to administratively substitute any of the points of contact listed below at any time.

(b) The contracting officer is the only person authorized to change this contract or orders issued thereunder. The Contractor shall not comply with any order, direction or request of Government personnel - that would constitute a change - unless it is issued in writing and signed by the Contracting Officer or is pursuant to specific authority otherwise included as part of this contract. If, in the opinion of the contractor, an effort outside the existing scope of this contract is requested, the contractor shall promptly comply with the Notification of Changes clause of this contract.

(c) The points of contact are as follows:

(i) The Procuring Contracting Officer (PCO) is:
Name: Michael Ouellette, Code 0223
Address: NUWC Division Newport 1176 Howell Street Newport, RI 02841
Phone: (401) 832- 5568;
E-mail: Michael.N.Ouellette.CIV@US.NAVY.MIL

(d) The Technical Point of Contact (TPOC) is the contracting officer’s representative for technical matters when a COR is not appointed. The TPOC is responsible for technical issues of contract administration, such as providing all items of Government Furnished Information (GFI), Government Furnished Material (GFM) and Government Furnished Equipment (GFE) if specified in the contract as well as the inspection and acceptance of all contract deliverables.

The Technical Point of Contact (TPOC) is: TO BE PROVIDED AT AWARD
Name: [*]
Address: [*Street]
[*City, State, Zip]
Phone: (Area Code) xxx- [xxxx]; FAX: (Area Code) xxx- [xxxx]
E-mail: [*]

(e) The Contractor's point of contact for performance under this contract is: PLEASE PROVIDE WITH PROPOSAL

Name: [*]
Title: [*]
Address:
[*Street]
[*City, State, Zip]
Phone: (Area Code) xxx- [xxxx]; FAX: (Area Code) xxx- [xxxx]
E-mail: [*]

[*] To be completed at contract award

(End of text)

Section H - Special Contract Requirements

SPECIAL CONTRACT REQUIREMENTS
SUBCONTRACTING AND SALE OF BUSINESS

a. This contract or any part hereof shall not be subcontracted after award without prior written approval of the Contracting Officer and the NUWCDIVNPT FSB.

b. This contract shall not be sold to a third party except upon the approval of the Contracting Officer. The Contracting Officer shall not give approval of such a sale unless the Contracting Officer is convinced that NUWCDIVNPT will in no way suffer as a result of such a sale. If there is a sale to a third party all the term of this contract shall still apply. The Government's right to not exercise any or all options shall remain fully enforceable.

Section I - Contract Clauses

ADDITIONAL CLAUSES
See Attachment 1 to this solicitation for applicable Non-appropriated Fund Contract Clauses.

Note: Within Attachment 1, all references to ''NAFI" (Non-Appropriated Fund Instrumentality) are synonymous with ''NUWCDIVNPT CMWR/FSB”.

CLAUSES INCORPORATED BY REFERENCE

52.203-5	Covenant Against Contingent Fees	MAY 2014
52.204-24	Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment	NOV 2021
52.204-25	Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment	NOV 2021
52.222-3	Convict Labor	JUN 2003
52.222-4	Contract Work Hours and Safety Standards - Overtime Compensation	MAY 2018
52.222-20	Contracts for Materials, Supplies, Articles, and Equipment	JUN 2020
52.222-26	Equal Opportunity	SEP 2016
52.222-35	Equal Opportunity for Veterans	JUN 2020
52.222-36	Equal Opportunity for Workers with Disabilities	JUN 2020
52.222-37	Employment Reports on Veterans	JUN 2020
52.222-41	Service Contract Labor Standards	AUG 2018
52.225-13	Restrictions on Certain Foreign Purchases	FEB 2021
52.232-11	Extras	APR 1984
52.243-1	Changes--Fixed Price	AUG 1987
52.246-1	Contractor Inspection Requirements	APR 1984
52.246-4	Inspection Of Services--Fixed Price	AUG 1996
52.246-16	Responsibility For Supplies	APR 1984
52.247-52	Clearance and Documentation Requirements-Shipments to DOD Air or Water Terminal Transshipment Points	FEB 2006

CLAUSES INCORPORATED BY FULL TEXT

52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

https://www.acquisition.gov/

(End of provision)

Section J - List of Documents, Exhibits and Other Attachments

Exhibit/Attachment Table of Contents

DOCUMENT TYPE	DESCRIPTION	PAGES	DATE
Attachment 1	Non Appropriated Fund Contract Clauses	10	

Section K - Representations, Certifications and Other Statements of Offerors

OFFEROR REPS AND CERTS

REPRESENTATIONS, CERTIFICATIONS AND ACKNOWLEDGMENTS

Contractors that are registered with the Government's System for Award Management (SAM) may provide their DUNS number in lieu of section K.
WALSH-HEALEY PUBLIC CONTRACTS ACT REPRESENTATIONS (Applicable to supply contracts exceeding $15,000.00)
The offeror represents as a part of this offer that the offeror {_____} is or {_____} is not a regular dealer in, or {_____} is or {____} is not a manufacturer of, the supplies offered.
CONTINGENT FEE
(a) Offeror _____has _____ has not employed any company or persons (other than a full-time bona fide employee working solely for the offeror) to solicit or secure this contract, and (b) _____has _____has not paid or agreed to pay any company or person (other than a full-time bona fide employee working solely for the offeror) any fee, commission, percentage, or brokerage fee contingent upon or resulting from the award of this contract; and agrees to furnish information relating to (a) and (b), as requested by the contracting officer. (Interpretation of the representation, including the term "bona fide employee," see subpart 3.4 of the Federal Acquisition Regulation.)
TYPE OF BUSINESS ORGANIZATION
Offeror operates as _____an individual _____a partnership _____a nonprofit organization _____a corporation, incorporated under the laws of the State of________________________________.
EQUAL OPPORTUNITY (EO)
(a) Offeror _____has _____has not participated in a previous contract or subcontract subject either to the EO clause herein or the clause originally contained in section 310 of Executive Order No. 10925, or the clause contained in section 201 of Executive Order No. 11114; offeror _____has _____has not filed all required compliance reports; and that representation indicating submission of required compliance reports, signed by proposed subcontractors, will be obtained prior to subcontract awards.
(b) Offeror represents that (1) it _____has developed and has on file _____has not developed and does not have on file, at each establishment affirmative action programs as required by the rules and regulations of the Secretary of Labor (41 CFR 60-1 and 60-2) or (2) _____it has not previously had contracts subject to the written affirmative action programs requirement of the rules and regulations of the Secretary of Labor.
CERTIFICATION OF INDEPENDENT PRICE DETERMINATION (Applicable to contracts over $100,000.00)
(a) By submission of this offer, the offeror certifies, and in the case of a joint offer, each party thereto certifies as to its own organization, that in connection with this procurement:
(1) The prices in this offer have been arrived at independently, without consultation, communication, or agreement, for the purpose of restricting competition, as to any matter relating to such prices with any other offeror or with any competitor;
(2) Unless otherwise required by law, the prices which have been quoted in this offer have not been knowingly disclosed by the offeror and will not knowingly be disclosed by the offeror prior to opening in the case of an advertised procurement or prior to award in the case of a negotiated procurement, directly or indirectly to any other offeror or to any competitor; and
(3) No attempt has been made or will be made by the offeror to induce any other person or firm to submit or not to submit an offer for the purpose of restricting competition.
(b) Each signature on this offer certifies that the signatory:

(1) Is the person in the offeror’s organization responsible within that organization for the decision as to the prices being offered herein and that the signatory has not participated, and will not participate, in any action contrary to (a)(1) through (a)(3) above; or
(2) (i) Is not the person in the offeror’s organization responsible within that organization for the decision as to the prices being offered herein but has been authorized in writing to act as agent for the persons responsible for such decision in
certifying that such persons have not participated and will not participate, in any action contrary to (a)(1) through (a)(3) above, and as their agent does hereby so certify; and (ii) has not participated, and will not participate, in any action contrary to (a)(1) through (a)(3) above.
CERTIFICATION OF NONSEGREGATED FACILITIES (Applicable to contracts and subcontracts exceeding $10,000.00 which are not exempt from the provisions of the EO clause)
(a) By submission of this offer, offeror/subcontractor certifies that it does not and will not maintain or provide for its employees any segregated facilities at any of its establishments, and that it does not and will not permit its employees to perform their services at any location under its control where segregated facilities are maintained. Offeror/subcontractor agrees that a breach of this certification is a violation of the EO clause in this contract. As used in this certification, the term “segregated facilities” means any waiting rooms, work areas, rest and wash rooms, restaurants and other eating areas, time clocks, locker rooms and other storage or dressing areas, parking lots, drinking fountains, recreation or entertainment areas, transportation, and housing facilities provided for employees which are segregated by explicit directive or are in fact segregated on the basis of race, color, religion, or national origin, because of habit, local custom, or otherwise. Offeror further agrees that (except where it has obtained identical certifications from proposed subcontractors for specific time periods) it will (1) obtain identical certifications from proposed subcontractors prior to the award of subcontracts exceeding $10,000.00 which are not exempt from the provisions of the EO clause; (2) retain such certifications in its files; and (3) forward the following notice to such proposed subcontractors (except where the proposed subcontractors have submitted identical certifications for specific time periods)
Notice to prospective subcontractors of requirement for certifications of nonsegregated facilities.
(b) A Certification of Nonsegregated Facilities must be submitted prior to the award of a subcontract exceeding $10,000.00 which is not exempt from the provisions of the EO clause.
(c) The certification may be submitted either for each subcontract or for all subcontracts during a period (i.e., quarterly, semiannually, or annually). NOTE: The penalty for making false offers is prescribed in 18 U.S.C. 1001.
(d) ACKNOWLEDGMENT OF AMENDMENTS
Amendment No. Date
The offeror acknowledges ____________ _____
receipt of amendments to ____________ _____
the solicitation for offers ____________ _____
and related documents ____________ _____
numbered and dated as ____________ _____
follows:
NOTE: Offers must set forth accurate and complete information as required by this Solicitation (including attachments). The penalty for making false statements in offers is prescribed in 18 U.S.C. 100

Section L - Instructions, Conditions and Notices to Bidders

INSTRUCTIONS FOR SUBMISSION
1.0 GENERAL INFORMATION.

Offerors must respond to all requirements of the solicitation document. The Government will evaluate each Offeror's proposal based on the solicitation. Failure to comply with the terms and conditions of this solicitation may result in the Offeror being removed from consideration for award.

The solicitation N6660423Q0163 will be made available only through the internet at: https://sam.gov/

Offerors are hereby notified that, from time to time, the Government may post additional information to the web site relating to this solicitation (e.g., responses to questions, amendments, etc.). It is the Offeror's responsibility to check the web site for any such information.

All questions concerning this procurement, either technical or contractual, must be submitted via email. No direct discussion between the Technical Point of Contact and the Offeror shall occur. All questions should be received in writing within ten (10) calendar days after release of the RFP to allow the Navy adequate time to prepare and issue responses to all Offerors prior to due date and time for proposals. Only questions transmitted electronically will receive a response.

All questions and Proposals shall be submitted via email to the following point of contact:
Name: Michael Ouellette
Contact Information: Michael.N.Ouellette.CIV@us.navy.mil

2.0 PROPOSAL FORMAT.

(a) Each Offeror shall submit its entire proposal electronically to the points of contact identified above. The proposal shall be submitted in the English language and using U.S. Currency. All content in the proposal shall be prepared in no smaller than 10-point font, single-spaced with no less than a one-inch margin on all sides. In the event that photo reduction is used for tables, charts, and drawings, their presentation must be clear and legible. No hyperlinks are allowed. Adobe .pdf or Microsoft Office compatible files are required. Adobe format documents shall be word searchable.

Offerors are required to submit their proposals in separate parts as follows:

Volume	Volume Title	Maximum Number of Pages
I	Cover Letter	No Page Limit
II	SF33 and FACTOR 1 – Percentage of Gross Sales	No Page Limit
III	FACTOR 2 - Past Performance	Three (3) pages per reference, excluding CPARS and PPQs

(1) **Cover letter.** The Offeror shall provide a cover letter with the below information. There is no page limit for this section of the proposal:

i. Solicitation number
ii. The name, address, email address, telephone numbers, Cage Code, DUNS Number, and Identification Number (TIN) of the Offeror
iii. A statement specifying the Offeror accepts all the terms, conditions, and provisions included in the solicitation
iv. A statement that the proposal is valid through 90 calendar days from the dates for receipt of proposals
v. Names, titles, telephone numbers, and e-mail addresses of persons authorized to respond to inquiries or negotiate on the Offeror's behalf
vi. Name, title, and signature of a person authorized to sign the proposal
vii. Identify all enclosures being transmitted as part of its proposal

(2) Signed solicitation document (SF 33) and Percentage of Gross Sales.

(3) Past Performance (Factor 2)

If a completed Contractor Performance Assessment Reporting System (CPARS) is available, it shall be submitted with the proposal. Past performance references shall reflect experience performed within five (5) years of the issue date of this solicitation. If there is not a completed CPARS evaluation then the Offeror shall provide Points of Contact (POC) where the offeror has operated beverage vending services any time over the past three years, including the name and contact information of the POC.

The Government may review any other sources of information for evaluating past performance. Sources may include, but are not limited to, CPARS, FAPIIS, inquiries of project owner representative(s), and any other known sources not provided by the Offeror.

While the Government may elect to consider data from other sources, the burden of providing detailed, current, accurate and complete past performance information rests with the Offeror.

In order to assist the Government in gathering past performance information, the contractor shall provide the following information regarding its past performance:

1. Estimated gross sales for the past three (3) years
2. Any and all licenses issued by any Government entity regarding the operation of your business, please include your State Tax ID number.
3. CPARS / Points of Contact.

Section M - Evaluation Factors for Award

EVALUATION FACTORS

1.0 BASIS FOR AWARD

1.1 General Information

(a) The Government intends to make a single award as a result of this Solicitation. Award will be made to the responsible Offeror whose proposal contains the combination of those criteria offering the best overall value to the Government. Offers will be evaluated on two evaluation factors. Total remittance percentage from the vendor to NUWCDIVNPT, and Past Performance.

(b) The Government intends to award a contract without discussions (except for clarifications as described in FAR 15.306(a)), as permitted by FAR 15.305(a) (3) and FAR 52.215-1. However, the Government reserves the right to conduct discussions to permit Offerors to revise their proposals.

1.2 Factors

The following table establishes all significant factors that will be considered in awarding the Contract:

FACTORS	SUBFACTORS
1. Percentage of Gross Sales	None
2. Past Performance	None

2.0 Percentage of Gross Sales (FACTOR 1)

The Government will evaluate the proposals in accordance with FAR 15.404-1(b) procedures.

3.0 NON-PRICE FACTORS

The Government will evaluate offers and assign one of the adjectival ratings indicated in Section 4.0 for each of the following non-price factors:

3.1 Past Performance (Factor 2)

The past performance evaluation assesses the Offeror's ability to supply products and services that meet users' needs, based on a demonstrated record of performance. The Government may consider past performance information contained in the Supplier Performance Risk System (SPRS) and the Federal Awardee Performance and Integrity Information System (FAPIIS). The Government may use other information such as the Contractor Performance Assessment Reporting System (CPARS) or other data available from Government sources to evaluate an Offeror's past performance. The Government may also contact all or some of each Offeror's customers to obtain past performance information. The Government reserves the right to limit or expand the number of references it decides to contact, and contact references other than those provided by the Offeror.

4.0 ADJECTIVAL RATINGS

(a) The Government will perform an evaluation of the non-price evaluation factors based on the Offeror's proposal. This evaluation focuses on aspects of the offerors proposal that meet or fail to meet the government's minimum requirements, resulting in the assignment of an adjectival rating for each factor. Price will not be assigned an adjectival rating.

(b) Past Performance Adjectival Rating

Past Performance Ratings	
Rating	**Description**
Acceptable	Based on the Offeror's recent/relevant performance record, the Government has a reasonable expectation that the Offeror will successfully perform the required effort, or the Offeror's performance record is unknown.
Unacceptable	Based on the Offeror's performance record, the Government does not have a reasonable expectation that the Offeror will be able to successfully perform the required effort.

In the case of an Offeror without a record of relevant past performance or for whom information on past performance is not available or so sparse that no meaningful past performance rating can be reasonably assigned, the offeror may not be evaluated favorably or unfavorably on past performance. Therefore, the Offeror shall be determined to have unknown past performance. In the context of acceptability/unacceptability "unknown" shall be considered acceptable.